

Smt. Reeta Mishra v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 7 October 2025 · Writ-C No. 35114 of 2025 · **Writ disposed of; remanded to Assessing Officer under Clause 6.8 subject to deposit of Rs. 35,000.**

HEADNOTE

Where compliance with assessment procedure is unclear and the consumer alleges no hearing before creation of an electricity demand, the High Court may dispose of the writ by directing, subject to a part-deposit, that the Assessing Officer decide the objection under Clause 6.8 of the U.P. Electricity Supply Code, 2005 by a reasoned order after personal hearing and confrontation with adverse material.

FACTUAL SUMMARY

Smt. Reeta Mishra challenged a recovery citation dated 22 July 2025 seeking to recover Rs. 1,52,145 towards electricity dues. She alleged that no opportunity of hearing was given before the demand was created. The Court noted that it was not clear whether the assessment procedure had been fully complied with, and saw no useful purpose in keeping the petition pending or calling for a counter affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

opportunity-of-hearing

HOLDING

Where it is unclear whether assessment procedure was fully complied with and the consumer claims no hearing before the demand, the writ may be disposed of directing that, subject to depositing Rs. 35,000 towards the disputed demand within one month and applying to the Assessing Officer within a further week, that officer shall decide the objection by a reasoned speaking order under Clause 6.8 of the U.P. Electricity Supply Code, 2005, after confronting the consumer with all adverse material and granting personal hearing, preferably within two months. ¶ 4-5

PRINCIPLE TAGS

opportunity-before-final-assessment

Where compliance with assessment procedure is unclear and the consumer alleges no hearing before creation of an electricity demand, the High Court may dispose of the writ by directing, subject to a part-deposit, that the Assessing Officer decide the objection under Clause 6.8 of the U.P.. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ASSESSMENT PROCEDURE WAS FULLY COMPLIED WITH AND WHETHER THE RECOVERY OF RS. 1,52,145 IS SUSTAINABLE ON MERITS

Compliance was recorded as unclear; the demand was remitted without a merits decision. ¶ 3-5